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The well-settled revocation power wielded by courts and other officials brings this point home. A violation of the conditions permitted not only the defendant’s reimprisonment, see Parole Survey 4; Probation Survey 2, but several other penalties as well. In the parole context, these penalties most often included the forfeiture of good time credits—a reduction in prison time based on good behavior—that the parolees had accrued prior to their release on parole, as well as the forfeiture of any time served for the duration of their parole. Parole Survey 249–253; see also Friedman, *supra*, at 159 (stating in the context of 19th century good time laws that “[t]o forfeit ‘good time’ was a terrible penalty”). Many States also conditioned the future availability of parole on mandatory minimum terms of reimprisonment, and others even rendered certain parole violators ineligible for future parole. Parole Survey 255–258. And in the probation context, several courts refused to give credit for time spent on probation. Probation Survey 334–335, and n. 52. Thus, courts and parole boards could not only revoke conditional liberty but they could also subject violators to longer periods of imprisonment and erase the fact that the violators had served a substantial portion of their lives on the streets under strict conditions.

From each of the foregoing examples, a clear historical fact emerges: American juries have simply played “no role” in the administration of previously imposed sentences. *Ice*, 555 U. S., at 168. As a result, it is impossible to say with a straight face that the “application of *Apprendi*’s rule” to supervised-release revocation proceedings “honor[s] the ‘longstanding common-law practice’ in which the rule is rooted.” *Id.*, at 167–168 (quoting *Cunningham*, 549 U. S., at 281).

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The plurality’s extension of the jury trial right to the administration of previously imposed sentences also sidelines

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what has until now been the core feature of the *Apprendi* line of cases—a meaningful connection to the trial for the charged offense. “The touchstone for determining whether a fact must be found by a jury beyond a reasonable doubt is whether the fact constitutes an ‘element’ or ‘ingredient’ of the charged offense.” *Alleyne*, 570 U. S., at 107 (plurality opinion); see also *Southern Union Co.*, 567 U. S., at 349 (“*Apprendi*’s ‘core concern’ is to reserve to the jury ‘the determination of facts that warrant punishment for a specific statutory offense’” (quoting *Ice*, 555 U. S., at 170)); *id.*, at 168 (noting the jury’s historic role as a “bulwark” between the government and the accused “*at the trial for an alleged offense*” (emphasis added)). The Court’s rationale has been that “the core crime and the fact triggering [an increased maximum or] mandatory minimum sentence together constitute a new, aggravated crime, each element of which must be submitted to the jury.” *Alleyne*, 570 U. S., at 113. And this rationale, of course, is key to the *Apprendi* line of cases, because the Sixth Amendment protects only the rights of “the accused,” that is, those charged with a particular crime. See *supra*, at 669–670.

In *Apprendi* itself, the Court emphasized the relevance of the charged offense when distinguishing *Almendarez-Torres v. United States*, 523 U. S. 224 (1998). The Court explained that the “reasons supporting [a recidivism] exception” in *Almendarez-Torres* did not apply in *Apprendi* because, “[w]hereas recidivism ‘does not relate to the commission of the offense’ itself, . . . New Jersey’s biased purpose inquiry goes precisely to what happened in the ‘commission of the offense.’” *Apprendi*, 530 U. S., at 496 (quoting *Almendarez-Torres*, 523 U. S., at 230, 244).

Here, the factual basis for revoking respondent’s supervised release did not “g[o] precisely to what happened in the ‘commission of the offense’”; it did not even “relate to the commission of the offense.” *Apprendi*, 530 U. S., at 496. It had virtually nothing to do with the child-pornography of-

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fense that led to respondent’s conviction, incarceration, and supervised release. The same would be true of a defendant convicted of burglary, arson, or any other crime: His failure to attend an employment class or to pass a drug test while on supervised release would have nothing to do with how he carried out those offenses. And it would be impossible for “the core crime” and a postjudgment fact affecting respondent’s sentence to be submitted “together” as one “new, aggravated crime” for proof to a jury. *Alleyne*, 570 U. S., at 113. Thus, no reasonable person would describe such postjudgment facts that go only to the administration of a previously imposed sentence as “ingredients” or “elements” of the charged offense. Insofar as the charged statutory offense has been part and parcel of “*Apprendi*’s core concern,” that concern “is inapplicable to the issue at hand,” and thus, “so too is the Sixth Amendment’s restriction on judge-found facts.” *Ice*, 555 U. S., at 170.

It is telling that the plurality never brings itself to acknowledge this clear departure from the *Apprendi* line of cases. For nearly two decades now, the Court has insisted that these cases turn on “a specific statutory offense,” and its “ingredients” and “elements.” Yet today we learn that—at least as far as the plurality is concerned—none of that really mattered.

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The plurality also errs by failing to distinguish between the unconditional liberty interests with which *Apprendi* is concerned and the conditional liberty interests at issue in cases like this one. Cf. *ante*, at 637 (“Only a jury, acting on proof beyond a reasonable doubt, may take a person’s liberty”). When a person is indicted and faces the threat of prison and supervised release, his unconditional liberty hangs in the balance. See *Apprendi*, 530 U. S., at 476 (“At stake in this case are constitutional protections of surpassing importance: the proscription of any deprivation of liberty without ‘due process of law,’ Amdt. 14”); *id.*, at 484

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(“If a defendant faces punishment beyond that provided by statute when an offense is committed under certain circumstances but not others, it is obvious that both the loss of liberty and the stigma attaching to the offense are heightened”); *id.*, at 495 (“The degree of criminal culpability the legislature chooses to associate with particular, factually distinct conduct has significant implications both for a defendant’s very liberty, and for the heightened stigma associated with an offense the legislature has selected as worthy of greater punishment”).

But convictions have consequences. “[G]iven a valid conviction, the criminal defendant [may be] constitutionally deprived of his liberty.” *Meachum v. Fano*, 427 U. S. 215, 224 (1976). To this end, “[s]upervised release is ‘a form of post-confinement monitoring’ that permits a defendant a kind of conditional liberty by allowing him to serve part of his sentence outside of prison.” *Mont v. United States*, 587 U. S. 514, 523 (2019) (quoting *Johnson v. United States*, 529 U. S. 694, 697 (2000)). Convicts like respondent on supervised release thus enjoy only conditional liberty. He most certainly was not “a free man.” *Ante*, at 653. This means, then, that “[r]evocation” of supervised release “deprives an individual, not of the absolute liberty to which every citizen is entitled, but only of . . . conditional liberty.” *Morrissey*, 408 U. S., at 480. It is perhaps for that reason that the decisions of this Court that mention “conditional liberty” speak only of general due process rights, not other constitutional protections that unaccused and unconvicted individuals enjoy. See, *e. g.*, *Connecticut Bd. of Pardons v. Dumschat*, 452 U. S. 458 (1981); *Vitek v. Jones*, 445 U. S. 480 (1980); *Wolff v. McDonnell*, 418 U. S. 539 (1974); *Morrissey*, 408 U. S. 471.

* * *

Today’s decision is based in part on an opinion that is unpardonably vague and suggestive in dangerous ways. It is not grounded on any plausible interpretation of the original

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meaning of the Sixth Amendment, and it is contradicted by precedents that are unceremoniously overruled. It represents one particular view about crime and punishment that is ascendant in some quarters today but is not required by the Constitution. If the Court eventually takes the trip that this opinion proposes, the consequences will be far reaching and unfortunate.

For these reasons, I respectfully dissent.

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RUCHO ET AL. *v.* COMMON CAUSE ET AL.APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE
MIDDLE DISTRICT OF NORTH CAROLINA

No. 18–422. Argued March 26, 2019—Decided June 27, 2019*

Voters and other plaintiffs in North Carolina and Maryland filed suits challenging their States’ congressional districting maps as unconstitutional partisan gerrymanders. The North Carolina plaintiffs claimed that the State’s districting plan discriminated against Democrats, while the Maryland plaintiffs claimed that their State’s plan discriminated against Republicans. The plaintiffs alleged violations of the First Amendment, the Equal Protection Clause of the Fourteenth Amendment, the Elections Clause, and Article I, § 2. The District Courts in both cases ruled in favor of the plaintiffs, and the defendants appealed directly to this Court.

Held: Partisan gerrymandering claims present political questions beyond the reach of the federal courts. Pp. 695–721.

(a) In these cases, the Court is asked to decide an important question of constitutional law. Before it does so, the Court “must find that the question is presented in a ‘case’ or ‘controversy’ that is . . . ‘of a Judiciary Nature.’” *DaimlerChrysler Corp. v. Cuno*, 547 U.S. 332, 342. While it is “the province and duty of the judicial department to say what the law is,” *Marbury v. Madison*, 1 Cranch 137, 177, sometimes the law is that the Judiciary cannot entertain a claim because it presents a nonjusticiable “political question,” *Baker v. Carr*, 369 U.S. 186, 217. Among the political question cases this Court has identified are those that lack “judicially discoverable and manageable standards for resolving [them].” *Ibid.* This Court’s partisan gerrymandering cases have left unresolved the question whether such claims are claims of *legal* right, resolvable according to *legal* principles, or political questions that must find their resolution elsewhere. See *Gill v. Whitford*, 585 U.S. 48, 60.

Partisan gerrymandering was known in the Colonies prior to Independence, and the Framers were familiar with it at the time of the drafting and ratification of the Constitution. They addressed the election of Representatives to Congress in the Elections Clause, Art. I, § 4, cl. 1, assigning to state legislatures the power to prescribe the “Times, Places and Manner of holding Elections” for Members of Congress,

*Together with No. 18–726, *Lamone et al. v. Benisek et al.*, on appeal from the United States District Court for the District of Maryland.

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while giving Congress the power to “make or alter” any such regulations. Congress has regularly exercised its Elections Clause power, including to address partisan gerrymandering. But the Framers did not set aside all electoral issues as questions that only Congress can resolve. In two areas—one-person, one-vote and racial gerrymandering—this Court has held that there is a role for the courts with respect to at least some issues that could arise from a State’s drawing of congressional districts. But the history of partisan gerrymandering is not irrelevant. Aware of electoral districting problems, the Framers chose a characteristic approach, assigning the issue to the state legislatures, expressly checked and balanced by the Federal Congress, with no suggestion that the federal courts had a role to play.

Courts have nonetheless been called upon to resolve a variety of questions surrounding districting. The claim of population inequality among districts in *Baker v. Carr*, for example, could be decided under basic equal protection principles. 369 U. S., at 226. Racial discrimination in districting also raises constitutional issues that can be addressed by the federal courts. See *Gomillion v. Lightfoot*, 364 U. S. 339, 340. Partisan gerrymandering claims have proved far more difficult to adjudicate, in part because “a jurisdiction may engage in constitutional political gerrymandering.” *Hunt v. Cromartie*, 526 U. S. 541, 551. To hold that legislators cannot take their partisan interests into account when drawing district lines would essentially countermand the Framers’ decision to entrust districting to political entities. The “central problem” is “determining when political gerrymandering has gone too far.” *Vieth v. Jubelirer*, 541 U. S. 267, 296 (plurality opinion). Despite considerable efforts in *Gaffney v. Cummings*, 412 U. S. 735, 753; *Davis v. Bandemer*, 478 U. S. 109, 116–117; *Vieth*, 541 U. S., at 272–273; and *League of United Latin American Citizens v. Perry*, 548 U. S. 399, 414 (*LULAC*), this Court’s prior cases have left “unresolved whether . . . claims [of legal right] may be brought in cases involving allegations of partisan gerrymandering,” *Gill*, 585 U. S., at 65. Two “threshold questions” remained: standing, which was addressed in *Gill*, and “whether [such] claims are justiciable.” *Ibid.* Pp. 695–703.

(b) Any standard for resolving partisan gerrymandering claims must be grounded in a “limited and precise rationale” and be “clear, manageable, and politically neutral.” *Vieth*, 541 U. S., at 306–308 (Kennedy, J., concurring in judgment). The question is one of degree: How to “provid[e] a standard for deciding how much partisan dominance is too much.” *LULAC*, 548 U. S., at 420 (opinion of Kennedy, J.). Partisan gerrymandering claims rest on an instinct that groups with a certain level of political support should enjoy a commensurate level of political power and influence. Such claims invariably sound in a desire for pro-

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portional representation, but the Constitution does not require proportional representation, and federal courts are neither equipped nor authorized to apportion political power as a matter of fairness. It is not even clear what fairness looks like in this context. It may mean achieving a greater number of competitive districts by undoing packing and cracking so that supporters of the disadvantaged party have a better shot at electing their preferred candidates. But it could mean engaging in cracking and packing to ensure each party its “appropriate” share of “safe” seats. Or perhaps it should be measured by adherence to “traditional” districting criteria. Deciding among those different visions of fairness poses basic questions that are political, not legal. There are no legal standards discernible in the Constitution for making such judgments. And it is only after determining how to define fairness that one can even begin to answer the determinative question: “How much is too much?”

The fact that the Court can adjudicate one-person, one-vote claims does not mean that partisan gerrymandering claims are justiciable. This Court’s one-person, one-vote cases recognize that each person is entitled to an equal say in the election of representatives. It hardly follows from that principle that a person is entitled to have his political party achieve representation commensurate to its share of statewide support. Vote dilution in the one-person, one-vote cases refers to the idea that each vote must carry equal weight. That requirement does not extend to political parties; it does not mean that each party must be influential in proportion to the number of its supporters. The racial gerrymandering cases are also inapposite: They call for the elimination of a racial classification, but a partisan gerrymandering claim cannot ask for the elimination of partisanship. Pp. 703–710.

(c) None of the proposed “tests” for evaluating partisan gerrymandering claims meets the need for a limited and precise standard that is judicially discernible and manageable. Pp. 710–718.

(1) The *Common Cause* District Court concluded that all but one of the districts in North Carolina’s 2016 Plan violated the Equal Protection Clause by intentionally diluting the voting strength of Democrats. It applied a three-part test, examining intent, effects, and causation. The District Court’s “predominant intent” prong is borrowed from the test used in racial gerrymandering cases. However, unlike race-based decisionmaking, which is “inherently suspect,” *Miller v. Johnson*, 515 U. S. 900, 915, districting for some level of partisan advantage is not unconstitutional. Determining that lines were drawn on the basis of partisanship does not indicate that districting was constitutionally impermissible. The *Common Cause* District Court also required the plaintiffs to show that vote dilution is “likely to persist” to such a degree that the

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elected representatives will feel free to ignore the concerns of the supporters of the minority party. Experience proves that accurately predicting electoral outcomes is not simple, and asking judges to predict how a particular districting map will perform in future elections risks basing constitutional holdings on unstable ground outside judicial expertise. The District Court’s third prong—which gave the defendants an opportunity to show that discriminatory effects were due to a “legitimate redistricting objective”—just restates the question asked at the “predominant intent” prong. Pp. 710–713.

(2) The District Courts also found partisan gerrymandering claims justiciable under the First Amendment, coalescing around a basic three-part test: proof of intent to burden individuals based on their voting history or party affiliation, an actual burden on political speech or associational rights, and a causal link between the invidious intent and actual burden. But their analysis offers no “clear” and “manageable” way of distinguishing permissible from impermissible partisan motivation. Pp. 713–715.

(3) Using a State’s own districting criteria as a baseline from which to measure how extreme a partisan gerrymander is would be indeterminate and arbitrary. Doing so would still leave open the question of how much political motivation and effect is too much. Pp. 715–716.

(4) The North Carolina District Court further held that the 2016 Plan violated Article I, § 2, and the Elections Clause, Art. I, § 4, cl. 1. But the *Vieth* plurality concluded—without objection from any other Justice—that neither § 2 nor § 4 “provides a judicially enforceable limit on the political considerations that the States and Congress may take into account when districting.” 541 U. S., at 305. Any assertion that partisan gerrymanders violate the core right of voters to choose their representatives is an objection more likely grounded in the Guarantee Clause of Article IV, § 4, which “guarantee[s] to every State in [the] Union a Republican Form of Government.” This Court has several times concluded that the Guarantee Clause does not provide the basis for a justiciable claim. See, e. g., *Pacific States Telephone & Telegraph Co. v. Oregon*, 223 U. S. 118. Pp. 717–718.

(d) The conclusion that partisan gerrymandering claims are not justiciable neither condones excessive partisan gerrymandering nor condemns complaints about districting to echo into a void. Numerous States are actively addressing the issue through state constitutional amendments and legislation placing power to draw electoral districts in the hands of independent commissions, mandating particular districting criteria for their mapmakers, or prohibiting drawing district lines for partisan advantage. The Framers also gave Congress the power to do something about partisan gerrymandering in the Elections Clause.

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That avenue for reform established by the Framers, and used by Congress in the past, remains open. Pp. 718–721.

318 F. Supp. 3d 777 and 348 F. Supp. 3d 493, vacated and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. KAGAN, J., filed a dissenting opinion, in which GINSBURG, BREYER, and SOTOMAYOR, JJ., joined, *post*, p. 721.

Paul D. Clement argued the cause for appellants in No. 18–422. With him on the briefs were *Erin E. Murphy*, *Andrew C. Lawrence*, and *Michael D. McKnight*.

Steven M. Sullivan, Solicitor General of Maryland, argued the cause for appellants in No. 18–726. With him on the briefs were *Brian E. Frosh*, Attorney General, *Julia Doyle Bernhardt*, Chief of Litigation, and *Sarah W. Rice*, *Jennifer L. Katz*, and *Andrea W. Trento*, Assistant Attorneys General.

Emmet J. Bondurant argued the cause for appellees Common Cause et al. in No. 18–422. With him on the brief were *Benjamin W. Thorpe*, *Gregory L. Diskant*, *Jonah M. Knobler*, *Peter A. Nelson*, *Edwin M. Speas, Jr.*, *Steven B. Epstein*, *Caroline P. Mackie*, and *Richard H. Pildes*. *Allison J. Riggs* argued the cause for appellees League of Women Voters of North Carolina et al. With her on the brief were *Paul M. Smith*, *Ruth M. Greenwood*, and *Nicholas Stephanopoulos*.

Michael B. Kimberly argued the cause for appellees in No. 18–726. With him on the brief were *Paul W. Hughes*, *Stephen M. Medlock*, *E. Brantley Webb*, *Micah D. Stein*, *Eugene R. Fidell*, and *Eugene Volokh*.[†]

[†]*Adam K. Motara* and *Kevin St. John* filed briefs for the Wisconsin State Senate et al. as *amici curiae* urging reversal in both cases.

Briefs of *amici curiae* urging reversal in No. 18–422 were filed for the State of Texas et al. by *Ken Paxton*, Attorney General of Texas, *Jeffrey C. Mateer*, First Assistant Attorney General, *Kyle D. Hawkins*, Solicitor General, *Matthew H. Frederick*, Deputy Solicitor General, and *Kristofer S. Monson*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Leslie Rut-*

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CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Voters and other plaintiffs in North Carolina and Maryland challenged their States' congressional districting maps as un-

ledge of Arkansas, Christopher M. Carr of Georgia, Curtis T. Hill, Jr., of Indiana, Jeff Landry of Louisiana, Dave Yost of Ohio, Mike Hunter of Oklahoma, Alan Wilson of South Carolina, and Sean D. Reyes of Utah; for the American Civil Rights Union et al. by John J. Park, Jr., and Kimberly S. Hermann; for Judicial Watch, Inc., et al. by Robert D. Popper; for Members of Congress from the North Carolina Delegation by Misha Tseytlin; for the National Republican Redistricting Trust by Edward D. Greim; for the Public Interest Legal Foundation by J. Christian Adams and Kaylan Phillips; for the Republican National Committee et al. by Jason Torchinsky; for Texas House Rep. Carl Isett by Joseph M. Nixon and James E. Trainor III; and for Rep. Michael C. Turzai by E. Mark Braden, Katherine L. McKnight, and Richard B. Raile.

William J. Murphy and John J. Connolly filed a brief for Rep. David Trone urging reversal in No. 18–726.

Briefs of *amici curiae* urging affirmance were filed in both cases for the American Civil Liberties Union et al. by *Adriel I. Cepeda Derieux, Dale E. Ho, David D. Cole, Perry M. Grossman, Arthur N. Eisenberg, Christopher Brook, Samuel Issacharoff, and Deborah A. Jeon*; for the American Jewish Committee by *Richard A. Rosen, Peter Sandel, and Marc D. Stern*; for the Anti-Defamation League et al. by *David Leit and Natalie J. Kraner*; for Bipartisan Group of Current and Former Members of the House of Representatives by *Seth P. Waxman, Jonathan G. Cedarbaum, and Ari Savitzky*; for the Brennan Center for Justice at N. Y. U. School of Law by *Anton Metlitsky, Bradley N. Garcia, Samantha M. Goldstein, Wendy R. Weiser, Michael C. Li, Daniel I. Weiner, and Thomas P. Wolf*; for the Constitutional Accountability Center by *Elizabeth B. Wydra, Brianne J. Gorod, and David H. Gans*; for First Amendment Scholars et al. by *Bradley S. Phillips*; for the Floyd Abrams Institute for Freedom of Expression by *Floyd Abrams, David Schulz, and Charles Sims*; for Governor Arnold Schwarzenegger et al. by *David A. Schwarz*; for Historians by *Richard W. Clary*; for the International Municipal Lawyers Association et al. by *G. Michael Parsons, Jr., Charles W. Thompson, Jr., and Amanda Kellar Karras*; for the Lawyers' Committee for Civil Rights Under Law by *Kristen Clarke, Jon M. Greenbaum, Ezra D. Rosenberg, Robert E. Harrington, Erik R. Zimmerman, and John Dragseth*; for Mathematicians et al. by *Deepak Gupta*; for the NAACP Legal Defense & Educational Fund, Inc., et al. by *Justin Levitt, Sherrilyn A. Ifill, Janai S. Nelson,*

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constitutional partisan gerrymanders. The North Carolina plaintiffs complained that the State's districting plan discriminated against Democrats; the Maryland plaintiffs complained that their State's plan discriminated against Republicans. The plaintiffs alleged that the gerrymandering violated the First Amendment, the Equal Protection Clause of the Fourteenth Amendment, the Elections Clause, and Article I, § 2, of the Constitution. The District Courts in both cases ruled in favor of the plaintiffs, and the defendants appealed directly to this Court.

Samuel Spital, Leah C. Aden, and Laura W. Brill; for Political Science Professors by *Brian A. Sutherland*; for Sen. Sheldon Whitehouse by *Mark W. Mosier*; for Michael Kang by *James P. Rouhandeh* and *David B. Toscano*; and for Stephen M. Shapiro by *Michael R. Geroe* and *Alan B. Morrison*.

Briefs of *amici curiae* urging affirmance in No. 18–422 were filed for the State of Oregon et al. by *Ellen F. Rosenblum*, Attorney General of Oregon, *Benjamin Gutman*, Solicitor General, and *Jordan R. Silk*, Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Thomas J. Miller* of Iowa, *Andy Beshear* of Kentucky, *Aaron M. Frey* of Maine, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Jim Hood* of Mississippi, *Gurbir S. Grewal* of New Jersey, *Letitia James* of New York, *Aaron D. Ford* of Nevada, *Hector Balderas* of New Mexico, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, and *Robert W. Ferguson* of Washington; for Colleagues of Norman Dorsen by *Burt Neuborne, pro se*; for Democracy North Carolina et al. by *Jonathan K. Youngwood*; for the First Amendment Clinic at Duke Law by *H. Jefferson Powell*; for Christopher Elmendorf et al. by *Mark A. Packman* and *Jenna A. Hudson*; for Eric S. Lander by *H. Reed Witherby*; for Wesley Pegden et al. by *Tacy F. Flint*; for D. Theodore Rave III by *Mr. Rave, pro se*; and for 27 Election Law Scholars et al. by *Andrew Chin, pro se*.

Briefs of *amici curiae* urging affirmance in No. 18–726 were filed for Michael C. Dorf et al. by *Anne M. Voigts*; and for Robert Lee Stone, Jr., et al. by *Glenn E. Bushel*.

Briefs of *amici curiae* were filed in both cases for Bernard Grofman et al. by *E. Joshua Rosenkranz* and *Thomas M. Bondy*; and for David Orentlicher by *Mr. Orentlicher, pro se*.

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These cases require us to consider once again whether claims of excessive partisanship in districting are “justiciable”—that is, properly suited for resolution by the federal courts. This Court has not previously struck down a districting plan as an unconstitutional partisan gerrymander, and has struggled without success over the past several decades to discern judicially manageable standards for deciding such claims. The districting plans at issue here are highly partisan, by any measure. The question is whether the courts below appropriately exercised judicial power when they found them unconstitutional as well.

I

A

The first case involves a challenge to the congressional redistricting plan enacted by the Republican-controlled North Carolina General Assembly in 2016. *Rucho v. Common Cause*, No. 18–422. The Republican legislators leading the redistricting effort instructed their mapmaker to use political data to draw a map that would produce a congressional delegation of ten Republicans and three Democrats. 318 F. Supp. 3d 777, 807–808 (MDNC 2018). As one of the two Republicans chairing the redistricting committee stated, “I think electing Republicans is better than electing Democrats. So I drew this map to help foster what I think is better for the country.” *Id.*, at 809. He further explained that the map was drawn with the aim of electing ten Republicans and three Democrats because he did “not believe it [would be] possible to draw a map with 11 Republicans and 2 Democrats.” *Id.*, at 808. One Democratic state senator objected that entrenching the 10–3 advantage for Republicans was not “fair, reasonable, [or] balanced” because, as recently as 2012, “Democratic congressional candidates had received more votes on a statewide basis than Republican candidates.” *Ibid.* The General Assembly was not swayed by that objection and approved the 2016 Plan by a party-line vote. *Id.*, at 809.

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In November 2016, North Carolina conducted congressional elections using the 2016 Plan, and Republican candidates won 10 of the 13 congressional districts. *Id.*, at 810. In the 2018 elections, Republican candidates won nine congressional districts, while Democratic candidates won three. The Republican candidate narrowly prevailed in the remaining district, but the State Board of Elections called a new election after allegations of fraud.

This litigation began in August 2016, when the North Carolina Democratic Party, Common Cause (a nonprofit organization), and 14 individual North Carolina voters sued the two lawmakers who had led the redistricting effort and other state defendants in Federal District Court. Shortly thereafter, the League of Women Voters of North Carolina and a dozen additional North Carolina voters filed a similar complaint. The two cases were consolidated.

The plaintiffs challenged the 2016 Plan on multiple constitutional grounds. First, they alleged that the Plan violated the Equal Protection Clause of the Fourteenth Amendment by intentionally diluting the electoral strength of Democratic voters. Second, they claimed that the Plan violated their First Amendment rights by retaliating against supporters of Democratic candidates on the basis of their political beliefs. Third, they asserted that the Plan usurped the right of “the People” to elect their preferred candidates for Congress, in violation of the requirement in Article I, § 2, of the Constitution that Members of the House of Representatives be chosen “by the People of the several States.” Finally, they alleged that the Plan violated the Elections Clause by exceeding the State’s delegated authority to prescribe the “Times, Places and Manner of holding Elections” for Members of Congress.

After a four-day trial, the three-judge District Court unanimously concluded that the 2016 Plan violated the Equal Protection Clause and Article I of the Constitution. The court further held, with Judge Osteen dissenting, that the

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Plan violated the First Amendment. *Common Cause v. Rucho*, 279 F. Supp. 3d 587 (MDNC 2018). The defendants appealed directly to this Court under 28 U. S. C. § 1253.

While that appeal was pending, we decided *Gill v. Whitford*, 585 U. S. 48 (2018), a partisan gerrymandering case out of Wisconsin. In that case, we held that a plaintiff asserting a partisan gerrymandering claim based on a theory of vote dilution must establish standing by showing he lives in an allegedly “cracked” or “packed” district. *Id.*, at 69. A “cracked” district is one in which a party’s supporters are divided among multiple districts, so that they fall short of a majority in each; a “packed” district is one in which a party’s supporters are highly concentrated, so they win that district by a large margin, “wasting” many votes that would improve their chances in others. *Id.*, at 55–56.

After deciding *Gill*, we remanded the present case for further consideration by the District Court. 585 U. S. 1012 (2018). On remand, the District Court again struck down the 2016 Plan. 318 F. Supp. 3d 777. It found standing and concluded that the case was appropriate for judicial resolution. On the merits, the court found that “the General Assembly’s predominant intent was to discriminate against voters who supported or were likely to support non-Republican candidates,” and to “entrench Republican candidates” through widespread cracking and packing of Democratic voters. *Id.*, at 883–884. The court rejected the defendants’ arguments that the distribution of Republican and Democratic voters throughout North Carolina and the interest in protecting incumbents neutrally explained the 2016 Plan’s discriminatory effects. *Id.*, at 896–899. In the end, the District Court held that 12 of the 13 districts constituted partisan gerrymanders that violated the Equal Protection Clause. *Id.*, at 923.

The court also agreed with the plaintiffs that the 2016 Plan discriminated against them because of their political speech and association, in violation of the First Amendment. *Id.*,

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at 935. Judge Osteen dissented with respect to that ruling. *Id.*, at 954–955. Finally, the District Court concluded that the 2016 Plan violated the Elections Clause and Article I, § 2. *Id.*, at 935–941. The District Court enjoined the State from using the 2016 Plan in any election after the November 2018 general election. *Id.*, at 942.

The defendants again appealed to this Court, and we postponed jurisdiction. 586 U. S. 1062 (2019).

B

The second case before us is *Lamone v. Benisek*, No. 18–726. In 2011, the Maryland Legislature—dominated by Democrats—undertook to redraw the lines of that State’s eight congressional districts. The Governor at the time, Democrat Martin O’Malley, led the process. He appointed a redistricting committee to help redraw the map, and asked Congressman Steny Hoyer, who has described himself as a “serial gerrymanderer,” to advise the committee. 348 F. Supp. 3d 493, 502 (Md. 2018). The Governor later testified that his aim was to “use the redistricting process to change the overall composition of Maryland’s congressional delegation to 7 Democrats and 1 Republican by flipping” one district. *Ibid.* “[A] decision was made to go for the Sixth,” *ibid.* (emphasis deleted), which had been held by a Republican for nearly two decades. To achieve the required equal population among districts, only about 10,000 residents needed to be removed from that district. *Id.*, at 498. The 2011 Plan accomplished that by moving roughly 360,000 voters out of the Sixth District and moving 350,000 new voters in. Overall, the Plan reduced the number of registered Republicans in the Sixth District by about 66,000 and increased the number of registered Democrats by about 24,000. *Id.*, at 499–501. The map was adopted by a party-line vote. *Id.*, at 506. It was used in the 2012 election and succeeded in flipping the Sixth District. A Democrat has held the seat ever since.

In November 2013, three Maryland voters filed this lawsuit. They alleged that the 2011 Plan violated the First

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Amendment, the Elections Clause, and Article I, §2, of the Constitution. After considerable procedural skirmishing and litigation over preliminary relief, the District Court entered summary judgment for the plaintiffs. 348 F. Supp. 3d 493. It concluded that the plaintiffs' claims were justiciable, and that the Plan violated the First Amendment by diminishing their "ability to elect their candidate of choice" because of their party affiliation and voting history, and by burdening their associational rights. *Id.*, at 498. On the latter point, the court relied upon findings that Republicans in the Sixth District "were burdened in fundraising, attracting volunteers, campaigning, and generating interest in voting in an atmosphere of general confusion and apathy." *Id.*, at 524.

The District Court permanently enjoined the State from using the 2011 Plan and ordered it to promptly adopt a new plan for the 2020 election. *Id.*, at 525. The defendants appealed directly to this Court under 28 U. S. C. §1253. We postponed jurisdiction. 586 U. S. 1063 (2019).

II

A

Article III of the Constitution limits federal courts to deciding "Cases" and "Controversies." We have understood that limitation to mean that federal courts can address only questions "historically viewed as capable of resolution through the judicial process." *Flast v. Cohen*, 392 U. S. 83, 95 (1968). In these cases we are asked to decide an important question of constitutional law. "But before we do so, we must find that the question is presented in a 'case' or 'controversy' that is, in James Madison's words, 'of a Judiciary Nature.'" *DaimlerChrysler Corp. v. Cuno*, 547 U. S. 332, 342 (2006) (quoting 2 Records of the Federal Convention of 1787, p. 430 (M. Farrand ed. 1966)).

Chief Justice Marshall famously wrote that it is "the province and duty of the judicial department to say what the law is." *Marbury v. Madison*, 1 Cranch 137, 177 (1803). Some-

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times, however, “the law is that the judicial department has no business entertaining the claim of unlawfulness—because the question is entrusted to one of the political branches or involves no judicially enforceable rights.” *Vieth v. Jubelirer*, 541 U. S. 267, 277 (2004) (plurality opinion). In such a case the claim is said to present a “political question” and to be nonjusticiable—outside the courts’ competence and therefore beyond the courts’ jurisdiction. *Baker v. Carr*, 369 U. S. 186, 217 (1962). Among the political question cases the Court has identified are those that lack “judicially discoverable and manageable standards for resolving [them].” *Ibid.*

Last Term in *Gill v. Whitford*, we reviewed our partisan gerrymandering cases and concluded that those cases “leave unresolved whether such claims may be brought.” 585 U. S., at 65. This Court’s authority to act, as we said in *Gill*, is “grounded in and limited by the necessity of resolving, according to legal principles, a plaintiff’s particular claim of legal right.” *Ibid.* The question here is whether there is an “appropriate role for the Federal Judiciary” in remedying the problem of partisan gerrymandering—whether such claims are claims of *legal* right, resolvable according to *legal* principles, or political questions that must find their resolution elsewhere. *Id.*, at 60.

B

Partisan gerrymandering is nothing new. Nor is frustration with it. The practice was known in the Colonies prior to Independence, and the Framers were familiar with it at the time of the drafting and ratification of the Constitution. See *Vieth*, 541 U. S., at 274 (plurality opinion). During the very first congressional elections, George Washington and his Federalist allies accused Patrick Henry of trying to gerrymander Virginia’s districts against their candidates—in particular James Madison, who ultimately prevailed over fellow future President James Monroe. Hunter, *The First Ger-*

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rymander? 9 Early Am. Studies 792–794, 811 (2011). See 5 Writings of Thomas Jefferson 71 (P. Ford ed. 1895) (Letter to W. Short (Feb. 9, 1789)) (“Henry has so modelled the districts for representatives as to tack Orange [county] to counties where he himself has great influence that Madison may not be elected into the lower federal house”).

In 1812, Governor of Massachusetts and future Vice President Elbridge Gerry notoriously approved congressional districts that the legislature had drawn to aid the Democratic-Republican Party. The moniker “gerrymander” was born when an outraged Federalist newspaper observed that one of the misshapen districts resembled a salamander. See *Vieth*, 541 U. S., at 274 (plurality opinion); E. Griffith, *The Rise and Development of the Gerrymander* 17–19 (1907). “By 1840 the gerrymander was a recognized force in party politics and was generally attempted in all legislation enacted for the formation of election districts. It was generally conceded that each party would attempt to gain power which was not proportionate to its numerical strength.” *Id.*, at 123.

The Framers addressed the election of Representatives to Congress in the Elections Clause. Art. I, §4, cl. 1. That provision assigns to state legislatures the power to prescribe the “Times, Places and Manner of holding Elections” for Members of Congress, while giving Congress the power to “make or alter” any such regulations. Whether to give that supervisory authority to the National Government was debated at the Constitutional Convention. When those opposed to such congressional oversight moved to strike the relevant language, Madison came to its defense:

“[T]he State Legislatures will sometimes fail or refuse to consult the common interest at the expense of their local coveniency or prejudices. . . . Whenever the State Legislatures had a favorite measure to carry, they would take care so to mould their regulations as to favor the

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candidates they wished to succeed.” 2 Records of the Federal Convention of 1787, at 240–241.

During the subsequent fight for ratification, the provision remained a subject of debate. Antifederalists predicted that Congress’s power under the Elections Clause would allow Congress to make itself “omnipotent,” setting the “time” of elections as never or the “place” in difficult to reach corners of the State. Federalists responded that, among other justifications, the revisionary power was necessary to counter state legislatures set on undermining fair representation, including through malapportionment. M. Klarman, *The Framers’ Coup: The Making of the United States Constitution* 340–342 (2016). The Federalists were, for example, concerned that newly developing population centers would be deprived of their proper electoral weight, as some cities had been in Great Britain. See 6 *The Documentary History of the Ratification of the Constitution: Massachusetts* 1278–1279 (J. Kaminski & G. Saladino eds. 2000).

Congress has regularly exercised its Elections Clause power, including to address partisan gerrymandering. The Apportionment Act of 1842, which required single-member districts for the first time, specified that those districts be “composed of contiguous territory,” Act of June 25, 1842, ch. 47, 5 Stat. 491, in “an attempt to forbid the practice of the gerrymander,” Griffith, *supra*, at 12. Later statutes added requirements of compactness and equality of population. Act of Jan. 16, 1901, ch. 93, § 3, 31 Stat. 734; Act of Feb. 2, 1872, ch. 11, § 2, 17 Stat. 28. (Only the single-member district requirement remains in place today. 2 U.S.C. § 2c.) See *Vieth*, 541 U.S., at 276 (plurality opinion). Congress also used its Elections Clause power in 1870, enacting the first comprehensive federal statute dealing with elections as a way to enforce the Fifteenth Amendment. Force Act of 1870, ch. 114, 16 Stat. 140. Starting in the 1950s, Congress enacted a series of laws to protect the right to vote through measures such as the suspension of literacy tests and the